

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1483 of 2011

Abdur Rahman Chowdhury, represented by his
constituted attorney Fazlur Rahman
Chowdhury.

-----Plaintiff-Appellate-Petitioner

=Versus=

Director, Directorate of Urban Development,
Segun Bagicha, Dhaka and others.

---Defendant-Respondent-Opposite Parties

Mr. Tabarak Hossain, with

Ms. Shahnaz Parvin, Advocates

----- For the Petitioner

Mr. Surajit Bhattacharjee, with

Mr. Mani Shankar Sarker, Advocates

-----For the Opposite Parties

Heard on 07.11.2017 and

Judgment on 30.11.2017

At the instance of the plaintiff-appellant-petitioner, Abdur Rahman Chowdhury, this Rule has been issued calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 17.01.2011 passed by the learned District Judge, Sylhet in Title Appeal No.72 of 2003 dismissing the appeal and upholding the judgment and decree dated 12.03.2003 passed by the learned Joint District Judge, 2nd Court, Sylhet in Title Suit No.80 of 1999 dismissing the suit should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia* are that the present-petitioner as the plaintiff filed the Title Suit No.80 of 1999 in the court of learned Joint District Judge, court No.2, Sylhet for declaration of title to get allotment of the scheduled land in the plaint and also for declaration that the allotment in favour of the present-defendant-opposite party No.7, Shamsul Islam alias Babul, was illegal and also for a permanent injunction against the said opposite party No.7 restraining him for disturbing the plaintiff. The plaint case is that the department of Housing and Settlement under the Ministry of Works established Shahjalal Upashahar Housing Project by making different plots of land. Plot No.39/A, Road No.4, Block-A, of the said project was allotted to one Moboshir Ali upon the land measuring .0775 acres equivalent to three and half kathas and handed over possession after registering the sale deed on 07.04.1984 in his favour. Besides the said plot there was a vacant land on the eastern side of the Plot No.39/A measuring .0250 acres equivalent to less than one and half kathas. This land was a separate adjacent to plot of the petitioner which could not be allotted to any other person but it was to be allotted to the adjacent owner. On 05.01.1997 the said Moboshir Ali sold the Plot No.39/A and delivered possession to the plaintiff by obtaining permission from the authority. The plaint further contains that the plaintiff has been in possession of the said additional land and made several applications to the authority of the

project on 11.12.1997, 31.11.1998, 04.01.1991 and finally 23.03.1999. On his application the Chief Engineer, Directorate of Housing, the Chairman of the National Housing Authority, Sagun Bagicha, Dhaka an enquiry committee submitted a report without investigating the suit land. The present-opposite party No.7 given a false statement describing the additional land measuring 1.77 katha equivalent to .0293 acres accordingly, the said land was allotted to the present-opposite party No.7 illegally which he disclosed to the plaintiff on 28.05.1999 and threaten to dispossess the plaintiff, thus, the suit was filed.

The present opposite party Nos.2 and 4-6 as the defendants contested the suit by filing three separate written statements denying all the material statements made in the plaint. The defendants have contended that the suit was not maintainable. The present-opposite party Nos.2 and 4-6 contended that Plot No.39/B, Road No.4, Shahjala Housing Estate, measuring land .293 acres equivalent to 1.77 kathas was an independent and separate government property and it was allotted to the present-opposite party No.7 within the provision of the Government Rule and the present-petitioner does not have any right, title, interest or possession of the said independent Plot No.39/B. The predecessor of the present-plaintiff-petitioner was only allotted the Plot No.39/A with a separate boundary and an allottee under the project could not get more than one plot, therefore, there is no illegality or violation of rule by

allotting 39/B to the present-opposite party No.7. The present-opposite party No.7 filed a separate written statement contending, *inter-alia*, that the instant residential project under District- Sylhet was taken by the government by acquiring land through L.A. Case No.2 of 1985-1986 including the land of the present-opposite party No.7 and made separate plots of different measurements and sizes. The opposite party No.7 as an effected person applied to the concern authority for allotment of a plot, accordingly, the Plot No.39/B was allotted after making appropriate investigation as to his entitlement and possession of the plot was handed over. It is also contended that this land is measuring .0293 acres equivalent to 1.77 kathas wherein he has constructed a semi pucca building and other houses, therefore, he prayed to dismiss the suit.

After hearing the parties and considering the relevant documents and depositions in support of the respective parties, the learned trial courts dismissed the suit by his judgment and decree dated 12.03.2003. Being aggrieved the present petitioner as the appellant preferred the Title Appeal No.72 of 2003 in the court of learned District Judge, Sylhet which was heard by the learned Special District Judge, Sylhet, who passed the impugned judgment and decree dated 17.01.2011 by dismissing the appeal thereby, therefore, affirming the judgment and decree of the trial court. This revisional application has been filed by the present-petitioner under Section 115(1) of the Code of Civil Procedure

challenging the legality of the said impugned judgment and decree of the lower appellate court and the Rule was issued thereupon.

Mr. Tabarak Hossain, the learned Advocate, along with the learned Advocate Ms. Shahanaz Parvin appearing for the petitioner, submitted that both the courts below came to the same finding that according to the project rules none was entitled to get a second plot and the plaintiff was already holding one plot by failing to notice that the suit land described in the second schedule of the plaint was not a separate plot because it was measuring less than 1.5 katha and therefore could not be regarded as a plot as per the project rules and the plaintiff wanted to get that spare land being the owner of the adjacent plot and therefore, there is no legal bar in having the said excess land, as such, the courts below having failed to notice this important aspect of the matter, the impugned judgment and decree is liable to be set aside.

The learned Advocate further submits that under Clause-4 of the সিলেট আবাসিক এলাকায় প্লট বরাদ্দের বিবরণপত্র prepared by the then গৃহ সংস্থান অধিদপ্তর, সেগুন বাগিচা, ঢাকা established in the month of January, 1988 (Exhibit-Ka) containing Clause-4 with a directive note to allot any land in the project under the measurement of three and half kathas but the Plot No.39/B is less than one and half katha therefore, the allotment in favour of the opposite party No.7 is a clear violation of the said বরাদ্দের বিবরণপত্র, as such, both the courts committed an error of law resulting in

an error in the decision occasioning failure of justice, therefore, the Rule should be made absolute.

The Rule has been opposed by the present-opposite party No.7 by filing a Counter-affidavit contenting, *inter-alia*, that the government with a view to establish a residential area in Sylhet town acquired some land through L A Case No.2/1985-86, the suit land along with other undisputed land acquired by the government from the defendant no.7 along with other persons for that purpose. The government divided the area in block numbers with plots of various sizes and gave allotment to different persons. The defendant No.7 as an affected by acquisition of his property applied for obtaining any plot in Block-A, B, C, D and on the basis of the application the authority after investigation allotted the plot No.39B in favour of the defendant no.7 by allotment letter dated 19.05.1999 and the defendant no.7 paid total consideration money through installments fixed by the authority and possession has been given on 19.05.1999, lease deed executed on 30.12.2010.

Mr. Surajit Bhattacharjee, the learned Advocate along with the learned Advocate Mr. Mani Shankar Sarker appearing for the opposite party No.7 submits that the learned trial court after considering the evidence adduced and produced by the respective parties concluded to dismiss the suit filed by the present-petitioner and the learned appellate court also concurrently found against the present-petitioner by finding

that there was no illegality in allotting Plot No.39/B which is land measuring 1.77 kathas equivalent to .0293 acres as an independent land, therefore, the courts have committed no illegality by passing the concurrent judgment but the present-petitioner obtained the present Rule by misleading this Court, therefore, the Rule should be discharged.

The learned Advocate further submits that the present-opposite party No.7 could successfully prove that he was an effected person by the L.A. Case No. 2/1985-86 accordingly, he was given allotment and possession of the Plot No.39/B within frame work of the existing law and the said বরাদ্দের বিবরণপত্র and finally the land was transferred in favour of him on 30.12.2010 during pendency of this Rule. As there was no embargo imposed by any court but the claim of permanent injunction by the present-petitioner is not sustainable under the law without proving actual possession upon the land therefore, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment passed by the learned appellate court below and also considering the materials in the lower court record, it appears to me that the present-petitioner as the plaintiff filed the suit claiming for allotment of the Plot No.39/B prescribed in the schedule of the plaint and also

praying for cancellation of allotment in favour of the present-opposite party No.7 and further praying for permanent injunction. These three prayers in the plaint have been examined by the learned courts below. I have also examined the same. It appears to me that the plaintiff-petitioner is seeking allotment of Plot No.39/B on the basis of a land situated adjacent to vacant land of the Plot No.39/A but the concerned authorities being the present-opposite party No.4, the Executive Engineer, Comilla Housing Division, Sylhet and the opposite party No.5, Administrative Officer, Comilla, Housing Division, Sylhet conducted an investigation as to the claim of the present-petitioner, who submitted a report describing the land measuring 1.77 kathas equivalent to .0293 acres, therefore, it was considered as an independent and separate land by the authority, as such, the claim of the present petitioner is not sustainable as a vacant adjacent land therefore, the present-petitioner was not entitled to get allotment of a 2nd plot within frame work of law.

Regarding the prayer for cancellation of allotment in favour of the present-opposite party No.7, I find that there is no illegality in allotting the Plot No.39/B to an affected person by the land acquisition process of the L.A. Case No.2/1985-86. I have also considered that the plaintiff-petitioner failed to prove his own case as to the prayer of cancellation of allotment in favour of the opposite party No.7.

Regarding the prayer for permanent injunction, the settled principle is that a party has to prove actual and exclusive possession upon the suit land and incidental entitlement upon the land in order to get a permanent injunction.

In view of the allotment letter dated 19.05.1999 in favour of the opposite party No.7 and handed over possession of the suit land being Plot No.39/B. The present-defendant-opposite parties have adduced sufficient evidence in the court below in order to prove that the letter could not be exhibited the original allotment letter but this matter has not been disputed by the present-petitioner rather it was admitted in the plaint. Accordingly, the plaintiff failed to prove an actual possession of the suit land being Plot No.39/B in order to get a permanent injunction restraining the present-opposite party No.7 because it would cause suffering to the present-opposite party No.7.

Now I am inclined to examine the impugned judgment and decree passed by the learned courts below. The learned trial court came to a lawful conclusion to dismiss the suit on the basis of the following finding:

বর্ণিত ক্ষে-এ দেখা যায়, বাদী আঃ রহমান চৌধুরী ৬/১/৯৭ ইং তারি-খর রেজিস্ট্রকৃত খরিদা দলিল মু-ল সি-লট আবাসিক এলাকাধীন শাহজালাল হাউজিং এ-স্ট-টর ৩৯ /এ, প্ল-ট খরিদ সূ-এ মালিক হইয়া-ছেন। নালিশী ২য় তপসীল বর্ণিত প্লটটিও সি-লট আবাসিক এলাকাধীন শাহজালাল হাউজিং এ-স্ট-টর ৩৯/বি প্লট ভূক্ত ভূমি। বাদী যে-হতু, সি-লট আবাসিক এলাকাধীন শাহজালাল হাউজিং এ-স্ট-টর এ ব্ল-কর

৩৯/এ, প্লটটিতে খরিদ সূ-এ মালিক সে-হতু, তিনি ৩৯/বি, প্লটটি বরাদ্দ পাইবার জন্য কোন আবেদন করিতে পারেন না বা করিলেও উক্ত ভূমি বরাদ্দ পাইতে পারেন না। তাই বাদী তাহার প্রার্থিত মতে ২য় তপসীলের ভূমি বরাদ্দ পাইবার অধিকারী ম-র্ম ঘোষনার ডিক্রি পাওয়ার অবকাশ নাই। বাদী যে-হতু, সি-লট আবাসিক এলাকায় একটি প্লটের মালিক সে-হতু তিনি উক্ত এলাকার ভিন্ন কোন প্লট বা নালিশী ২য় তপসীল বর্ণিত প্লটটি বরাদ্দ পাইবার আবেদন করারই অধিকারী নহেন।

The learned appellate court concurrently found against the present-petitioner and in favour of the present-opposite party no.7 on the basis of the following finding:

“তাছাড়া বাদী ও বিবাদী প-ক্ষর দাখিলা সাক্ষ্য সাবুত ও কাগজাত পর্যা-লাচনায় দেখা যায় যে, নালিশা ২য় তপসীল বর্ণিত ভূমি-ত বাদী/আপীলকারী পক্ষ তাহার দখল প্রমা-ন ব্যর্থ হইয়া-ছেন। সেই পেক্ষি-ত ১-৬ নং বিবাদী/রেসপন-ডন্ট কর্তৃক ৭নং বিবাদী/রেসপনডেন্ট বরাবরে প্রদত্ত বরাদ্দ আইনানুগ ও সঠিক ম-র্ম অএ আপীল আদালত অভিমত পোষন ক-রন। বিবাদী/-রেসপন-ডন্ট প-ক্ষর বিজ্ঞ কৌশলী দাবী ক-রন যে, সুনির্দিষ্ট প্রতিকার আই-নর ৪২ ধারায় বাদী/আপীলকারীর মূল মোকাদ্দমাটি আইনতঃ অচল। অনুরূপ ভাবে বাদী/আপীলকারী নালিশা ২য় তপসী-লর ভূমি-ত কোন স্বত্ব স্বার্থ অর্জন না করায় এবং দখল প্রমা-ন ব্যর্থ হওয়ায় স্থায়ী নিষেধাজ্ঞার কোন প্রতিকার পাওয়ার অধিকারী ন-হন। যাহা বাদি/আপীলকারী প-ক্ষর বিজ্ঞ কৌশলী এই ব্যাপা-র কোন আইনগত ব্যাখ্যা প্রদান করি-ত পা-রন নাই।”

In view of the above discussions and perusing the impugned judgment passed by the courts below concurrently finding that the plaintiff-petitioner failed to prove his own case in order to get any relief and thereby the learned appellate court committed no error of law by passing the impugned judgment. I am, therefore, not inclined to interfere into the judgment passed by the appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The ad-interim order of direction to maintain status-quo in respect of possession and position of the suit land passed by this Court at the time of issuance of the Rule is hereby recalled and vacated.

The office is directed to communicate this judgment and order to the concerned court immediately and the Section is also directed to send down the lower courts' record at once.